

24CMCV00653 24CMCV00653

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-28

Motion: DEFENDANTS' MOTION TO QUASH SUBPOENA DUCES TECUM

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Case Number: 24CMCV00653 Hearing Date: August 28, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

PABLO MERCED, et al.,

Plaintiffs,

vs.

PEARCE

TANK LINE INC., et al.,

Defendants.

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CASE NO: 24CMCV00653

[TENTATIVE]

ORDER RE: DEFENDANTS' MOTION TO QUASH SUBPOENA DUCES TECUM

Dept.

A

DATE:

August 28, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 05/01/2024

TRIAL:

01/06/2027

MOVING

PARTY: Defendants Pearce Tank
Line, Inc. and Agustin Ramirez

RESPONDING

PARTY: Plaintiffs Pablo Merced and
Rosa Merced

1. Background

This is a motor vehicle collision and wrongful death action. Plaintiffs Pablo Merced and Rosa Merced (“Plaintiffs”) allege that on February 11, 2023, their child, decedent Samuel Merced (“Decedent”), was struck by a vehicle owned, operated, and driven by defendants Agustin Ramirez and Pearce Tank Line, Inc. (collectively, “Defendants”). Plaintiffs allege that Decedent, as a result of the collision, passed away.

On August 4, 2026, the court held a hearing on this motion to quash. At the hearing, the court continued the motion to today’s date and gave the parties leave to file supplemental briefing.

2. Request for Judicial Notice

Defendants request that the court take judicial notice of Plaintiffs’ complaint; the records contained in the court’s file for *People v. Ramirez* (Super. Ct. Los Angeles County, 2024, No. 24CMCM00382-01) (the “Criminal Case”); and the Order to Seal Arrest and Related Records in that same case.

Pursuant to California Evidence Code 452, subd. (c), judicial notice may be taken of “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.” Judicial notice may also be taken of “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.” (Id., subd. (d).)

The court

takes judicial notice of the requested documents.

3. Discussion

Defendants

move to quash Plaintiffs' subpoena duces tecum upon the Los Angeles County District Attorney's Office. Defendants contend that production of the requested records would violate Defendant Ramirez's privacy rights, as the records relate to an arrest for which there was no conviction. In opposition, Plaintiffs contend that Defendant Ramirez has no cognizable privacy right to these records.

In their

reply, Defendants contend that Defendant Ramirez's arrest records were sealed by the order of the court after the filing of the instant motion, and therefore that the requested records are not discoverable.

Under Code of Civil Procedure section 1987.1, subdivision (a), the court may quash, modify, or direct compliance with a subpoena requiring the production of documents, or make any other order "as may be appropriate to protect the person from unreasonable or oppressive demands." (Code Civ. Proc., § 1987.1, subd. (b)(2).)

A party may obtain discovery of any non-privileged matter that is relevant to the subject matter of the action "if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.)

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc. § 2031.060, subd. (a).) Such a motion will include a meet and confer declaration pursuant to Code Civ. Proc. § 2016.040. (See *id.*)

Penal Code § 851.92, subd. (b)(5) provides that, when a court issues an order to seal an arrest, "[a]rrest records, police investigative reports, and court records that are sealed under this section shall not be disclosed to any person or entity except the person whose arrest was sealed or a criminal justice agency." Any person who disseminates

information relating to a sealed arrest shall be subject to a civil penalty. (Id., subd. (c).)

Defendant Ramirez's arrest record has been sealed. Therefore, arrest records, police investigative reports, court records, or other information relating to the arrest made in connection with the Criminal Case are not discoverable.

Plaintiffs, in their supplemental opposition, contend that Defendants lack standing to invoke Penal Code § 851.92, arguing that Evidence Code § 1040 is analogous. However, Evidence Code § 1040 expressly states that "[a] public entity has a privilege to refuse to disclose official information," thereby limiting who has standing to invoke it. Penal Code § 851.92 contains no such limitation, and in fact expressly prohibits any person, other than a criminal justice agency or the person whose arrest was sealed, from disseminating information relating to a sealed arrest. (Pen. Code, § 851.92, subd. (c).)

Plaintiffs also contend that some portion of the records sought to be discovered do not fall within the coverage of Penal Code § 851.92 because they do not constitute arrest records, police investigative reports, or court records. Plaintiffs argue that some of the records sought originated with the California Highway Patrol, nor the District Attorney's Office, and therefore are not sealed. However, Plaintiffs have not subpoenaed the California Highway Patrol, they have subpoenaed the District Attorney's Office, and therefore Plaintiff's subpoena seeks records created, compiled, or maintained by a criminal justice agency as defined by Penal Code § 851.92, subd. (d)(4). Furthermore, the underlying records sought that Plaintiff contends originated from the California Highway Patrol constitute "intelligence, analytical, and investigative reports created, compiled, and maintained by a law enforcement criminal justice agency and relating to a potential crime, violation of the law, arrest, detention, prosecution, or law enforcement investigation." (Penal Code § 851.92.)

Moreover, even if the court found that some of these records were discoverable, the subpoena as issued would be overbroad and not narrowly tailored. The court is not inclined to tailor Plaintiffs' subpoena on their behalf.

Plaintiffs additionally contend that the argument as to the arrest records being sealed was brought forth for the first time on

reply, and therefore was procedurally improper. However, the arrest was sealed only after the filing of the motion, such that this argument could not have been brought at the time of filing of the motion. Furthermore, the court has already given Plaintiffs leave to file a supplemental opposition to address this argument, such that they have not been prejudiced.

Plaintiffs' document requests in their subpoena duces tecum request information relating to the now-sealed arrest made in the Criminal Case. Therefore, pursuant to Penal Code § 851.92, this information is undiscoverable, and quashing the subpoena is appropriate under Code of Civil Procedure § 1987.1.

The court will therefore grant Defendants' motion to quash.

4. Conclusion

Based on the foregoing, the court GRANTS Defendants' motion to quash Plaintiffs' subpoena duces tecum served upon the Los Angeles County District Attorney's Office.

Defendants are ordered to give notice.

IT IS SO ORDERED.

DATED: August 28, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court